

M/S Om Ice Factory v. U.P. Power Corporation Ltd.

Allahabad High Court · Division Bench · 6 August 2013 · Writ - C No. 42668 of 2013 · **Writ disposed; objections to be considered before final assessment.**

HEADNOTE

A writ seeking to quash a provisional assessment notice is disposed of without examining alleged breaches of clauses 6.8 and 8.1 of the U.P. Electricity Supply Code, 2005: the consumer may file objections within 15 days, to be considered by the assessing authority before finalising the assessment, and the Court expresses no opinion on the merits.

FACTUAL SUMMARY

The petitioner ice factory was inspected on 4 June 2013 and served a provisional assessment notice dated 19 June 2013, with 15 days to reply. It alleged the connection was disconnected from 12 October 2012 to 15 May 2013, so 23 days were wrongly included in the formula, and that the notice was issued without application of mind or prior opportunity, in breach of clauses 6.8 and 8.1 of the U.P. Electricity Supply Code, 2005. Objections had not been filed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objections-to-provisional-assessment

HOLDING

Where a consumer has not yet objected to a provisional assessment notice, a writ seeking to quash that notice on alleged breaches of clauses 6.8 and 8.1 of the Supply Code, 2005, and on the assessment formula, is not decided on merits; the consumer may submit objections within the time allowed, which the assessing authority is to consider before finalising the assessment in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PROVISIONAL ASSESSMENT BREACHED CLAUSES 6.8 AND 8.1, WHETHER DISCONNECTED DAYS WERE WRONGLY INCLUDED IN THE FORMULA, AND WHETHER PRIOR OPPORTUNITY OR APPLICATION OF MIND WAS REQUIRED BEFORE THE NOTICE

Court expressed no opinion on the merits; assessing authority to consider all aspects in accordance with law. ¶ 1